

To afford plaintiff the opportunity to address the above-stated issues, the court continues this motion to **September 22, 2026 at 8:30 a.m. in Department 32**. By September 9, 2026, plaintiff shall file and serve a supplemental declaration of counsel with exhibits as appropriate.

10. S-CV-0056043 Hill Top Cntr. v. Kelly Architectural & Planning

Demurrer of Cross-Defendant Hoss Bozorgzad to Cross-Complaint

Cross-defendant Hossein “Hoss” Bozorgzad (“Bozorgzad”) demurs to the cross-complaint in its entirety on the grounds it fails to state any cause of action against him as an individual, and is uncertain, ambiguous and unintelligible. (Code Civ. Proc. § 430.10 (e), (f).) Defendant / cross-complainant Kelly Architecture & Planning, Inc., opposes the motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Bozorgzad contends the cross-complaint contains overly conclusory allegations related to his purported alter ego liability. The court has reviewed the cross-complaint in its entirety and finds it sufficiently alleges the requisite elements supporting alter ego liability at the pleading stage. (*See Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 236 (abrogated on other grounds).) The demurrer is overruled on this ground.

Bozorgzad separately argues cross-complainant’s third cause of action for fraud by concealment fails to state sufficient facts to constitute a valid cause of action and is uncertain. “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]” (*Graham v. Bank of America, N.A.* (2016) 226 Cal.App.4th 594, 606.) The allegations of a fraud claim based on concealment must be stated with specificity. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878.)

The cross-complaint fails to allege all elements of the fraud claim with necessary

specificity. The demurrer is sustained as to the third cause of action with leave to amend. Any amended cross-complaint shall be filed and served on or before **September 11, 2026**.

11. S-CV-0056073 Berg, Jill Elaine v. Berg, Brendon

Counsel is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion To Be Relieved as Counsel

Counsel Gordon G. Bones's motion to be relieved as counsel for defendant The EMC Shop, LLC is granted, effective upon the filing of a proof of service of the signed order on the defendant. (Code Civ. Proc., § 284, subd. (2); Cal. Rules of Court, rule 3.1362.)

As an entity defendant may not represent itself in court, defendant The EMC Shop, LLC is advised it must obtain representation forthwith and that failure to do so may result in consequences including but not limited to the inability to defend against motions, the inability to prosecute the case, and ultimately possible dismissal of the action. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141; *Van Gundy v. Camelot Resorts, Inc.* (1983) 152 Cal.App.3d Supp. 29.)

12. S-CV-0056153 Reddy, Pardha v. Dismukes, Bret

Cross-Defendants' Demurrer to Dismuke Construction and Bret Dismukes' Amended Cross-Complaint is continued to **September 15, 2026 at 8:30 a.m. in Department 32**.

13. S-CV-0057022 Wagenhoffer, Karl v. Sonitrol of Sacramento

The demurrer to the complaint is dropped from calendar as no moving papers were filed with the court and in light of the full dismissal filed on July 7, 2026.

14. S-CV-0057073 Foulk, Steven R v. LoanDepot.com

The motion for preliminary injunction is continued to **September 15, 2026 at 8:30 a.m. in Department 32**. No further briefing is permitted.
